



EAGLE
M O U N T A I N

EAGLE MOUNTAIN PLANNING COMMISSION MEETING MINUTES

May 26, 2020, 5:30 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

5:30 P.M. – Eagle Mountain City Planning Commission Work Session

COMMISSION MEMBERS PRESENT: Matthew Everett, Christopher Pengra, Erin Wells, Rich Wood, and Brett Wright.

CITY STAFF PRESENT: Steve Mumford, Community Development Director; Michael Hadley, Planning Manager; Fionnuala Kofoed, City Recorder; and Elizabeth Fewkes, Recording Secretary.

Commissioner Wood called the work session to order at 5:34 p.m.

1. Discussion Items

1.A. General Plan Future Transportation Map Review

Community Development Director Steve Mumford presented and reviewed the Future Transportation Map: General Plan Review Discussion. He stated the City Engineer Chris Trusty plans to update the Transportation Master Plan Impact Fee Facilities Plan (IFFP) which will include a City-wide update to the traffic model and recommendations for changes to the transportation network and system. Mr. Trusty suggested to delay the approval or implementation of changes and updates to the Municipal traffic plan until after the completion of the traffic studies and the IFFP update.

Discussion ensued regarding potential transportation system change recommendations for staff to discuss and address with the traffic study consultants. Commissioner Wood requested that Mr. Mumford to update the Planning Commission with study findings when available.

1.B. Development Code Amendments Including, but not Limited to the Industrial Zone & Overlay Zones

The Planning Commission discussed Eagle Mountain Municipal Code (EMMC) Chapter 17.40 Industrial Zone, the desirability of various types of heavy manufacturing uses, and potential concerns.

Commissioner Wood requested that the Industrial Zone return to the following work session and stated the City Council has requested the removal of conditional uses from the Code.

Commissioner Pengra volunteered to present Industrial Zone information and suggestions at the following work session meeting.

The Planning Commission discussed permitted uses and other concerns regarding extractive industries, industrial, and equine overlay zones.

Commissioner Wood requested that staff to include the Sweetwater Industrial Overlay Zone, a historical preservation zone, regional technology and industry overlay zone, ridgeline protection standards, and a water source protection overlay zone on the work session agenda for the next meeting.

1.C. Chapter 17.10 Definitions; Tier and Bonus Density Language Removal

Commissioner Wood stated amendments to the residential zones had resulted in language references to sections that have been repealed. He stated tier and bonus density language needs to be amended or removed from the Municipal Code. Mr. Mumford explained staff is working on identifying Code inconsistencies and special uses standards concerns and will share the findings with the Planning Commission.

6:30 P.M. – Eagle Mountain City Planning Commission Policy Session

Commissioner Wood called the meeting to order at 6:35 p.m. and announced the meeting was being held remotely via Lifesize. Commissioner Wood thanked City Recorder Fionnuala Kofoed and the Recorder's Office staff for facilitating remote meetings.

2. Pledge of Allegiance

Ms. Kofoed led the Pledge of Allegiance.

3. Declaration of Conflicts of Interest

None.

4. Approval of Meeting Minutes

4.A. May 12, 2020 Planning Commission Minutes

The Planning Commission discussed the Auto Zone site plan and recorded plat amendment public hearing and determined the intent of the Commission was to continue the hearing to the meeting in which the item returns.

Commissioner Everett clarified the area of the proposed 7-Eleven and Dollar Tree locations had been proposed residential with townhomes but not rezoned.

MOTION: *Commissioner Wright moved to approve the May 12, 2020 minutes, as discussed. Commissioner Wells seconded the motion. Those voting aye: Matthew Everett, Brett Wright, Rich Wood, Christopher Pengra, and Erin Wells. The motion passed with a unanimous vote.*

5. Status Report

This item was discussed after item 8.

Mr. Mumford stated the City Council approved an amendment to the Sage Park Business Center development agreement that included residential and flex use office buildings and storage units. The discussion focused on the road width to be reimbursed by the City. The applicant agreed to dedicate and improve a 65-foot road width, including 40 feet of asphalt, and the language in agreement included a right-in/right-out access critical to the development with the location to be determined.

Staff began discussing future applications during work sessions with the City Council two weeks prior to the vote on the item. Mr. Mumford discussed and received feedback on the Regional Commercial Zone, the Airpark Zone, and official signs.

6. Action and Advisory Items

6.A. Sweetwater Industrial Park – Master Site Plan & Preliminary Plat – Public Hearing

Mr. Mumford presented the item. The applicant is proposing an industrial master site plan for approximately 203 acres of land to the north and northwest of the City's Community Development Building. The majority of this property is shown in the City's Future Land Use Map as Business Park/Light Industry, with a smaller portion on the northwest side designated as Neighborhood Residential One. The property was zoned as Industrial in the Eagle Mountain Properties Master Development Plan and has not been rezoned since that time.

A master site plan for this property was approved on September 1, 2015 but has since expired. Many of the conditions of approval for the original project were stipulations to comply with City Code requirements such as lighting, parking, landscaping, building height, and streetlights. The current application will need to comply with the current applicable Municipal Code requirements.

Items for consideration:

Roads

The Future Land Use and Transportation Corridors Map includes the following major roadways that impact this project:

- A 122-foot wide minor arterial road on the east side (Pony Express Parkway)
- A 152-foot wide major arterial road on the north side (Tiffany Lane; previously referred to as Pole Canyon Boulevard)
- A north-south collector road (77 or 94 feet) through the project (shown as 1020 East on the site plan)

The master site plan indicates a dedication of 76 feet on the north (half-width of 152 feet), 61 feet on the east (half-width of 122 feet), and 77 feet along the collector road through the project. The plan also shows that the public roads in the project are designed as 77-foot minor collector roads,

with 40 feet of asphalt to allow for a middle turn lane (with alternate striping), as well as 8-foot park strips and 8-foot asphalt or concrete paths.

A portion of the north-south collector road through the project has been designed and will soon be built by the City (in partnership with Facebook), along with an 18-inch waterline. This road will provide an additional access to the Facebook site.

Sweetwater Industrial Overlay Zone

The applicant recently submitted a rezone application to add the Sweetwater Industrial Overlay Zone to this project. (See EMMC Chapter 17.53 for the overlay zone standards.) The purpose of the overlay is to provide for and allow industrial and business opportunities that will provide a buffer zone between the wastewater treatment facility and higher end businesses and industrial uses. The overlay zone includes a list of permitted and conditional uses and some reduced development standards (pedestrian-scaled architecture details not required, metal buildings allowed, gravel parking areas behind buildings, no parking lot landscaping requirements behind buildings, outdoor storage allowed). This application will be brought to the Planning Commission in a future meeting.

Staff recommends that the Planning Commission recommends approval to the City Council of the Sweetwater Industrial master site plan and preliminary plat with the following conditions:

1. The intersections along Tiffany Lane shall be shifted to provide a minimum of 1,320 feet between intersections.
2. A landscape plan shall be submitted for the park strips throughout the development, including street trees and consistent landscaping, to be approved by the City Parks Director.

Mr. Mumford explained the Municipal Code requirement for a master development plan for parcels larger than 160 acres includes standards not applicable to industrial uses. He stated Code allows for the Planning Director to waive certain requirements that may not be necessary for industrial proposals in parcels larger than five acres in size and explained Municipal Code permits the processing of the master site plan application as a master development plan. Commissioner Wood stated the benefits of requiring a master development plan.

Commissioner Wright requested clarification regarding the staff suggestion to provide a public road access to the adjacent properties. Mr. Mumford stated the adjacent properties had never been included in a subdivision plat and would ideally be included as lots in this project had the parcels been owned by a single entity. He stated Municipal Code does not require lot frontage on a public road for industrial areas; however, public road access would prevent potential disputes caused by the removal of a private drive easement in the future.

Discussion ensued regarding road frontage and setback requirements for industrial uses.

Commissioner Wells expressed concern regarding allowing a single access to the adjacent properties.

Mr. Mumford explained the landowner is responsible for half of the road width installation during the development of the property and the remaining road width competition requirement is deferred until the development of the adjacent property, regardless if a single entity owns both properties.

Applicant representative Scot Hazard stated staff has assisted in accelerating the application to allow the applicant to receive feedback due to time-sensitive commercial development opportunities for the property. He expressed willingness to move the intersection to meet Municipal Code standards and to preserve access to the adjacent property. He stated the lots along Tiffany Lane and Pony Express Parkway did not need to be included in the Sweetwater Industrial Overlay zone area as they are intended for commercial uses. He explained industrial uses were desired for the area adjacent to the sewage treatment plant as the area near the plant is undesirable to other uses due to odor and other concerns. He stated potential uses for the area include construction activity, contract construction activity, and satellite communications. The owner desires reduced standards to permit exterior/non-enclosed uses and metal buildings. He stated more detailed plans would be provided during the commercial site plan reviews once specific uses for the lots have been determined. He suggested addressing landscaping with a covenants, conditions, and restrictions to bind all future owners to the terms of the plan for aesthetical congruency.

Commissioner Wells verified the easement to the Miller property was 50-feet wide. Mr. Hazard stated he did not know if the easement had been recorded or only proposed.

Commissioner Wood opened the public hearing at 7:12 p.m. No comments were submitted to the City Recorder's Office phone line at 801.789.6611 or online via the City website at <https://eaglemountaincity.com/city-recorder/city-meetings-portal/#meetingdocs>, and no public was in attendance to make comment. As there were no comments, Commissioner Wood closed the hearing.

Discussion ensued regarding EMMC Chapter 16.10.030 Master Development Plans Required and recommending waiving the requirement for a master development plan for the application to the City Council.

Commissioner Wright stated appreciation for the applicant sharing his intention for the project and for recognizing the lots along Tiffany Lane and Pony Express Parkway were suited for commercial uses not industrial uses and expressed the desire to offer some flexibility with the project.

Commissioner Wells suggested potentially including staff recommendations regarding utility and traffic study concerns as conditions of approval to ensure the issues were addressed by the applicant. Mr. Mumford explained Municipal Code indicates the City Engineer may require a traffic study for a site plan and would not necessarily need to be included as a condition.

Discussion ensued regarding traffic concerns and traffic study requirements for industrial areas. Mr. Hazard stated his willingness to comply with the engineering standards, including utilities, once he receives direction from the City Engineer.

Commissioner Everett suggested permitting landscaping options to create cohesiveness while still allowing flexibility due to the potential for various industrial uses.

Mr. Hazard stated staff recommended a dripline and trees in a park strip. He expressed concern with proper park strip maintenance in industrial applications and suggested low maintenance options such as xeriscaping.

Mr. Mumford stated the Planning Commission and City Council could determine to install medians on the sections of Tiffany Lane and Pony Express Parkway near the property and stated neither street currently includes medians. Commissioner Wood stated medians beautify the City and provide a sense of openness and are more difficult to install after road completion. Mr. Mumford explained the City is responsible for the cost of median installation and maintenance.

Commissioner Pengra expressed concern with funding proper median maintenance in industrial areas and stated the need to bring in additional businesses and taxes prior to raising standards and costs. He expressed concerns with medians impeding truck traffic flow in an industrial area.

Commissioner Wright expressed concerns with medians in an industrial area due to impracticality and truck traffic impediments and safety.

Discussion ensued regarding landscaping requirements and buffering.

MOTION: *Commissioner Pengra moved to recommend approval of the Sweetwater Industrial Park master site plan and preliminary plat to the City Council with the following conditions:*

- 1. The intersection along Tiffany Lane shall be shifted to provide a minimum of 1,320 feet between intersections;*
- 2. An appropriate landscaping plan for the park strip throughout the development, including street trees and consistent landscaping, shall be submitted removing the requirement for medians fronting adjacent to the north on Tiffany Lane and the east on Pony Express Parkway; and*
- 3. A master development plan shall not be required as per Chapter 16.10.030 (C).*

Commissioner Wright seconded the motion. Those voting aye: Matthew Everett, Brett Wright, Rich Wood, and Christopher Pengra. Those voting nay: Erin Wells. The motion carried with a vote of 4:1.

Commissioner Wells clarified her vote against the motion was due to the removal of the median requirement and stated decorative rock could be used to reduce maintenance concerns.

Commissioner Wood recessed the meeting at 7:43 p.m. and reconvened the meeting at 7:54 p.m.

6.B. Dollar Tree Site Plan

City Planner Michael Hadley reviewed the item. This item was tabled at the May 12, 2020 planning commission meeting.

The applicant has submitted updated plans since the last meeting.

Mr. Hadley stated the applicant is working with staff on a lighting plan, as the submitted lighting plan that was missing the lumen count calculation; the monument sign will need to comply with Municipal Code and will require a permit.

Mr. Hadley verified the applicants addressed elevation movement and variance concerns and an updated landscaping plan had yet to be submitted due to the applicants' focus on resolving the building design and orientation concerns with the previous site plan.

Commissioner Wood stated a public comment was received from Clinton Spencer regarding the Dollar Tree and 7-Eleven site plans. The public hearings for the site plans were held and closed during the May 12, 2020 Planning Commission meeting.

Applicant representative Ryan Forsythe explained the reorientation of the building caused property lane overlap with the neighboring property due to site space limitations requiring an easement or property, acquirement which is not guaranteed. The applicant asked if the City would allow a Code-compliant monument sign in the right-of-way along Pony Express Parkway, and if an additional curb cut would be allowed in the Pony Express Parkway median between the Dollar Tree and 7-Eleven.

Mr. Hadley stated the City does not allow monument signs in the right-of-way and he would need to review Municipal Code to determine if there are exceptions are allowed. He said he did not believe another curb-cut would be allowed and would need to consult with the City Engineer regarding the request.

Mr. Mumford explained the City partnered with private sign owners and allowed directional signs in the right-of-way. He said he would research if other businesses had been granted right-of-way signage exemptions.

Mr. Forsyth expressed concern with the lack of visibility due to the building orientation and lack of signage. He verified the faux store front is finished with composite material and stated rock columns and window awnings had been added to address elevation concerns.

Applicant representative Steven McMahon, Dollar Tree Manager of Architecture Services, explained the protrusion on the columns is usually six to eight inches.

Discussion ensued regarding addressing of building articulation concerns.

Mr. Forsyth stated Dollar Tree preferred the 5A Site Plan and explained he is in the process of obtaining an easement or land purchase from the adjacent landowner.

Commissioner Wood stated a precedence for monument sign rights-of-way exemptions has been established by businesses such as Cedar Valley Pharmacy located at the intersection of Pony Express Parkway and Ranches Parkway and agreed that locating the signage on the parking strip would reduce visibility. Mr. Mumford explained the sign Commissioner Wood referenced was a

project sign and Municipal Code allows for town center signs to be placed in the right-of-way. He said a few other signs have been granted exemptions to be place signs in the right-of-way.

Commissioner Wright thanked Dollar Tree for returning with a revised submission. He said other than ensuring utility access, he did not have concerns permitting a sign in the right-of-way. He stated the proposed elevations provided sufficient visual variance and was in favor of recommending approval of the revised site plan to the City Council.

Commissioner Pengra stated the architectural elevations were appropriate for the business type and in harmony with the appearance of other City businesses. He stated if the City allows exemptions for municipal signage and semi-permanent ladder signs, business exemptions should also be considered, when appropriate and with consideration of utility access, and felt it was appropriate to make an exemption for the monument sign, as the need for the signage increased due to the applicant accommodating the City with the reorientation of the building.

Commissioner Everett was excused at 8:26 p.m. due to technical difficulties.

Commissioner Wells thanked the applicant for the work and fast turnaround time and suggested increasing the architectural elements on the rear elevations. She stated permitting signage in the right-of-way would be appropriate, for this application, due to the requirement of the drive aisle. She noted the application was incomplete without the lighting and landscaping plans but did not have concerns about the applicant's ability to produce compliant plans.

Commissioner Pengra concurred with Commissioner Wells' concerns regarding the exclusion of the lighting plan and the resulting difficulty in making a recommendation to the City Council without all of the requested materials; however, he expressed preference not to hold and delay the application in this instance.

Mr. Hadley explained staff had received a Code-compliant lighting plan that was missing the total lumens per acreage calculation. He said the City requires for all lighting to shine downwards and the plan meets the architectural design standards. He verified no lighting would be allowed behind the property adjacent to residential areas. Mr. Hadley stated the elevations meet City architectural standards and some of the architectural depth variances are difficult to depict in a rendering.

MOTION: *Commissioner Wood moved to recommend approval of the Dollar Tree site plan 5A to the City Council with the following conditions:*

- 1. The applicant shall meet the lighting code standards in EMMC Chapter 17.56 and present a compliant lighting plan with an updated lumen count to the City Council;*
- 2. The applicant shall work with staff and the City Council on an agreement to allow right-of-way monument signage representing multiple business in the commercial development;*
- 3. The plan shall comply with the architectural standards found in EMMC Chapter 17.72.040(d); and*
- 4. The applicant shall submit a landscaping plan in compliance with EMMC Chapter 17.60.*

Commissioner Pengra seconded the motion. Those voting aye: Brett Wright, Rich Wood, Christopher Pengra, and Erin Wells. Those voting nay: None. The motion passed with a unanimous vote.

7. Discussion Items

7.A. Redstone Farms - Concept Plan

Mr. Hadley presented the item. The Scenic Mountain Master Development Plan was approved by the City Council on October 18, 2016. The Scenic Mountain Master Development Agreement (MDA) was approved by the City Council on November 15, 2016. This is the final development area in the Scenic Mountain Master Development Plan. The proposal consists of 90 townhome units on 5.33 acres, for a density of 16.8 units per acre. This area is zoned as Flex Use on the approved Master Development Plan's Land Use Map and is approved for up to 90 residential units.

Mr. Hadley explained the project required additional improved open space and the pickleball court is most likely the final amenity required for the overall development. He said an applicant representative will provide staff with additional information regarding the open space requirement fulfillment.

Mr. Hadley clarified that Phase C is the final phase in the project and the applicant is working to make the sloped area viable for construction.

Commissioner Everett returned to the meeting at 8:45 p.m.

Commissioner Wood verified the phase did not exceed the total allowed density per the MDA.

Commissioner Wright verified the reduction in allowable density from 120 to 90 unit was due to the Utah Department of Transportation acquiring a portion of the land, the new agreement superseded the terms of the previous MDA, and the community center, fire suppression, and trail connectivity MDA requirements have been met.

Commissioner Wood expressed concern that the intent of the open space requirement had not been met and allocating all of the open space to other areas of the project caused overcrowding in the proposed townhome units.

Applicant representative James Doolin with Land Development Partners, LLC stated the intent of presenting the concept plan was to receive feedback from the Planning Commission regarding the layout and architectural design. He explained the land is under contract to be purchased from Fieldstone Homes. Fieldstone Homes developed the first two phases and the remaining land is bound to the density requirements per the MDA. He stated the concept plan contains the maximum 90 units arranged with rear-loading garages fronting on courtyards to provide open space. He explained grading and lifting plans to make the sloped areas viable for construction, and the roads and private drive layout.

Commissioner Wood stated the side and rear elevations did not comply with City standards and required additional variance and movement. He said community feedback regarding the applicant's product has not been favorable and directed the applicant to EMMC Chapter 17.72.030(A)(2) Multifamily Building Orientation to review the requirements and see a preferred example.

Commissioner Wright noted Municipal Code states "units accessed via rear service drive shall have a man door on the garage side of the unit, and be addressed off the service drive," per the fire Code safety standards. He expressed concern the concept plan did not meet the open/plaza space requirements and invited the applicant to be more creative with the site design to prevent enclosed, tunnel-like walkways between buildings, and include trail connectivity to the other phases.

Mr. Doolin stated blasting would not be required due to the lack of rock.

Commissioner Pengra concurred with the concerns expressed by the other Commissioners. He stated the plan to maximize the density did not create a desirable layout or a differentiated, attractive product; he expressed his opinion that the City Council would not be in favor of the concept plan.

Commissioner Wood expressed concern that the proposed units would reduce the value of the existing homes in the area and suggested the inclusion of cluster homes to provide buffering.

Commissioner Wells stated favor for the front elevations and agreed the side and rear elevations which abut roads needed improvement. She expressed concern the three-bedroom townhomes did not provide sufficient open space for families with children.

Mr. Doolin expressed appreciation for the Planning Commission. He explained some of the developer constraints due to obtaining the property from Fieldstone Homes and limitations due to their product library. He said he will review the feedback and possibly reduce the density to increase open space and include cluster homes.

Commissioner Wright suggested the applicant consider commercial applications for the area or developing townhomes similar to the units west of the property.

Commissioner Everett expressed appreciation that the units presented had rear-loading garages and concurred with Commissioner Wells' approval of the front elevations. He expressed concern with unfavorable aesthetics created by the combination of six to eight units.

Commissioner Wood expressed concern with safe pedestrian passages around and between the units.

Discussion ensued regarding the property having been designated for commercial uses on the Future Land Use Map.

8. Next scheduled meeting

Mr. Hadley stated the Auto Zone site plan and the City Center Marketplace master site plan applications should return to the following meeting.

Commissioner Wood thanked the Planning Department and Recorder's Office staff for their time and efforts in preparing applications and facilitating meetings.

Commissioner Wells stated she would be unable to attend the next meeting.

Commissioner Everett noted a public comment was received by Louann Newton requesting a Community Center. He suggested that she approach the City Council regarding the matter during the open public comment section of a City Council meeting.

9. Adjournment

MOTION: *Commissioner Everett moved to adjourn. No second or vote was called.*

The meeting was adjourned at 9:23 p.m.

Approved by the Planning Commission on June 9, 2020.


Steve Mumford (Jun 10, 2020 10:05 MDT)
Steve Mumford, AICP
Community Development Director